

9:00 a.m. CALENDAR

LINE

3

**IN RE THE MATTER OF THE ZENA P. MILLER 1997 REVOCABLE TRUST,
AS AMENDED AND RESTATED
PR24-00444**

Petition for Suspension of Trustee Janet Miller or in the Alternative Removal of Trustee and to Compel an Accounting; and to Appoint an Interim Trustee

Pro Se Objection and Response to the “Petition for Suspension of Trustee Janet Miller or In The Alternative Removal Of Trustee and To Compel an Accounting; and To Appoint an Interim Trustee” (filed by Gregory Paul Miller)

Pro Se Objection and Response to the “Petition for Suspension of Trustee Janet Miller or In the Alternative Removal of the Trustee and to Compel an Accounting; And To Appoint An Interim Trustee” (filed by Nina M. Shea)

Pro Se Objection and Response to the “Petition for Suspension of Trustee Janet Miller or In the Alternative Removal of the Trustee and to Compel an Accounting; And To Appoint An Interim Trustee” (filed by Janet M. Miller)

Verified Petition for Order Confirming Interpretation of Trust Terms and Instructing Trustee to Proceed with Sale Of Real Property Commonly Known as 1761 Stuart Court, Benicia, California, Pursuant Thereto [Probate Code §§ 17200(a),(b)(1), (b)(3) and (b)(6)] (filed by Nina Miller Shea)

Status Review Hearing

PREGRANT ORDER

This matter was continued from February 6, 2025, May 8, 2025, July 10, 2025 and September 3, 2025, November 12, 2025, February 26, 2026, and March 18, 2026 to allow the parties to attend additional court-sponsored mediation on April 30, 2026. The court has reviewed the Notice of Withdrawal of Objections filed by Gregory Miller as to the original petition.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of additional mediation.

As to the Verified Petition filed Nina Miller Shea:

The proof of service filed on January 28, 2026 is missing required information and shows that service was done less than 30 days before the hearing as required by Probate Code section 17203. The court continued the matter so that proper notice could be given. There is no proof of service on file with the court showing this occurred.

9:01a.m. CALENDAR

LINE

4

ROBLES v. FCA US LLC
CU25-03052

Motion for Attorney's Fees filed by Plaintiff

TENTATIVE RULING

Plaintiff's motion for attorney's fees is granted in part.

Applying the lodestar method, the court finds that a reasonable rate for the work of the attorneys in this case in Solano County was \$450.00 an hour and a reasonable rate for the work of the paralegal (who did sometimes bill for clerical work) was \$150.00 an hour. Based on these hourly rates, the court reduces the amount plaintiff requests to \$25,185.00. The court adds another \$1,800.00 in fees for the further work expected to be done on this motion (four hours at an hourly rate of \$450.00).

The court finds that the amount of time spent on the tasks performed, as described in Exhibit 8 to the declaration of Vanessa Oliva, was not excessive, and therefore the court does not reduce the amount plaintiff requests based on time spent. Nor does the court reduce the amount plaintiff requests due to other matters raised by defendant, such as the fees incurred on plaintiff's motion to compel discovery and motion to compel the PMQ deposition. Plaintiff is entitled to recover for the fees incurred on these matters.

In view of the above, the total amount of attorney's fees awarded is \$26,985.00. Plaintiff is also entitled to recover the uncontested costs of \$1,986.20 claimed in its memorandum of costs.

9:30 a.m. CALENDAR

IN THE MATTER OF THE LUCERO VALDEZ SETTLEMENT TRUST
FPR046076

LINE

6

Petition to Approve Fifth Account and Report of Co-Trustees from 03/01/2024 through 02/28/2026, to Increase Bond, to Confirm Co-Trustees' Fees, and to Approve Attorneys' Fees [GC 70657.5(a)(1), 70652(d); PC 1060, 2620, and 17200(b)(5)]